

June 23, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 8854
(SIXTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of a Class 8 material in a non-DOT Specification IMO Type 5 portable tank. This special permit provides no relief from the Hazardous Materials Regulations(HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.243 in that a non-DOT specification IMO Type 5 portable tank is not authorized except as specified herein.
5. BASIS: This special permit is based on the application of Arbel-Fauvet-Rail dated September 3, 2002 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Hydrogen fluoride, anhydrous	8	UN1052	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are non-DOT specification portable tanks, mounted in ISO frames, designed and constructed in accordance with Fauvet-Girel drawings Co 167077, Co 167082, other drawings, technical specifications and calculations on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA), and in conformance with the following:

(1) Code--Complies with ASME Code (not Code stamped);
IMO Type 5.

(2) Insulation--None

(3) Water Capacity (U.S. Gallons)--5,072

(4) Material--French steel standard NF A 36 205,
designation A 52 FP, equivalent to ASTM A 537 Class 1
carbon steel.

(5) Tank Size Inches (outside dia.) X (length) X (thickness)
84.65 228.3 50.398
(after forming)

Head Thickness--0.398(after forming)

Weld Joint Efficiency--1.0

Corrosion Allowance--0.0

(6) Design Pressure (PSIG)--101.53

Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.

(7) Test Pressure, Minimum (PSIG)--152.30

(8) Openings--One (1), 20 inch diameter manhole
containing one (1) liquid phase outlet, one (1) gas
phase outlet and two (2) safety relief device pads on

the top; no bottom outlets.

(9) Tank surface area (square feet)--449

(10) Pressure Relief Devices--Two (2), 2.5 inch diameter spring loaded safety relief valves set at 101.53 psig outboard of and in series with two (2) 2.0 inch diameter rupture discs set at 111.68 psig. Total relief device capacity is 373,500 SCFH.

(11) G-Loadings: Vertical down 3; Vertical up 1; Longitudinal 2; and Transverse 1.

(12) Maximum Gross Weight (pounds)--52,910

(13) Maximum Commodity Weight (pounds)--40,785

(14) Tare Weight (pounds)--12,125

(15) Design Specific Gravity--0.96

(16) Design Temperature (°F)--149

b. TESTING -

1. Hydrostatic test certificates for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.

2. A test report documenting a satisfactory ISO prototype frame test for this tank design must be on file with the OHMEA prior to the first shipment.

3. Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; and (ii) be § 173.32b except the use of an approval agency is not required.

c. OPERATIONAL CONTROLS -

1. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-SP 8854".

2. The tank must be filled so as not to be liquid full at less than or equal to 130°F.

3. "DOT-SP 8854" must replace the "DOT 51" specification marking and be stamped on the metal manufacturer's data plate on the line which reads "D.O.T Specification No.".

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Packagings permanently marked 'DOT-E 8854', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 8854'.

d. Shipping papers displaying 'DOT-E 8854' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each cargo vessel used to transport packages covered by this special permit.

b. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

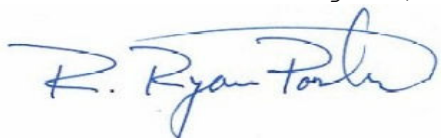
12. REPORTING REQUIREMENTS:

- a. The shipping experience report must contain the approximate number of shipments made and any difficulties encountered.
- b. The grantee of this special permit, as identified in paragraph 1 above, must contact the OHMSPA immediately after any of the tanks covered by this special permit are sold to another party.
- c. Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports.

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In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety - OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Porter", is written over a horizontal line.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM